

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #10	CCRB Case #: 201602547	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 03/27/2016 8:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/27/2017	Precinct: 77		
Date/Time CV Reported Mon, 03/28/2016 10:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/28/2016 10:00 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Henry Rivera	03959	940639	073 PCT
2. POM Jason Smith	16576	947496	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Smith	Abuse: Police Officer Jason Smith stopped § 87(2)(b)	A . Substantiated
B . POM Henry Rivera	Abuse: Police Officer Henry Rivera stopped § 87(2)(b)	B . Substantiated
C . POM Henry Rivera	Abuse: Police Officer Henry Rivera frisked § 87(2)(b)	C . Substantiated
D . POM Henry Rivera	Abuse: Police Officer Henry Rivera searched § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On March 28, 2016, § 87(2)(b) filed the following complaint with the CCRB. On March 27, 2016, at approximately 8:45 p.m., § 87(2)(b) attempted to unlock and drive his brother's green taxicab in order to move it from its parking spot at the intersection of § 87(2)(b) in Brooklyn. § 87(2)(b) was unable to open the door of the taxicab despite possessing the keys due to a malfunction. As § 87(2)(b) stepped back from the taxicab, PO Jason Smith and PO Henry Rivera of the 73rd Precinct pulled over in an unmarked police car. The officers approached § 87(2)(b) and stopped him on suspicion of attempting to break into the car (**Allegations A and B**). PO Rivera frisked § 87(2)(b) (**Allegation C**). PO Rivera also allegedly searched him (**Allegation D**). Both PO Smith and PO Rivera then returned to their vehicle without arresting or issuing § 87(2)(b) any summonses. § 87(2)(g), § 87(4-b)

§ 87(2)(b) recorded video of the incident on his cell phone starting before PO Smith and PO Rivera exited their vehicle and continuing throughout the incident until they drove away. § 87(2)(b) refused to provide a copy of the video to the CCRB.

Mediation, Civil and Criminal Histories

- § 87(2)(b) refused to mediate this complaint § 87(2)(b).
- As of June 10, 2016, an enquiry to the Office of the New York City Comptroller indicated that no notice of claim was filed for this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- The only other complaint filed by § 87(2)(b) was CCRB case number § 87(2)(b).
- PO Henry Rivera has had six complaints involving ten allegations filed against him in his ten year tenure at the NYPD. There were no allegations substantiated § 87(2)(g) (**Board Review 2**).
- PO Jason Smith has had seven complaints involving nine allegations filed against him in his seven year tenure at the NYPD. There were no allegations substantiated § 87(2)(g) (**Board Review 3**).

Potential Issues

- § 87(2)(b) initially refused to permit the undersigned investigator to view the video of the incident he recorded on his cell phone. After the importance of the video to the investigation was explained to § 87(2)(b) he agreed to play the video during his CCRB interview. However, § 87(2)(b) refused to provide a copy of the video to the CCRB. During repeated subsequent phone calls to § 87(2)(b) the importance of the video as

evidence was again stressed to § 87(2)(b). Despite this, § 87(2)(b) refused to provide a copy of the video to the CCRB.

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Smith and PO Rivera both acknowledged interacting with § 87(2)(b). PO Rivera admitted to frisking § 87(2)(b).

Allegation A – Abuse of Authority: Police Officer Jason Smith stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Henry Rivera stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Henry Rivera frisked § 87(2)(b)

It is not in dispute that PO Smith and PO Rivera stopped § 87(2)(b) § 87(2)(g).

§ 87(2)(b) stated that he was asked by his brother to move his parked green taxicab to another parking spot. § 87(2)(b) approached the driver's side door of the parked vehicle, which was in the street. § 87(2)(b) stood next to the driver's side door without touching the vehicle and pressed the remote-controlled unlocking mechanism of the vehicle. The vehicle did not unlock. There was a cap over the keyhole on the driver's side door, and because § 87(2)(b) was unfamiliar with the car, he did not attempt to open the door with the key. § 87(2)(b) intended to return home and ask his brother how to unlock the car. § 87(2)(b) denied that he touched the car (**Board Review 4**).

PO Smith (**Board Review 5**) and PO Rivera (**Board Review 6**) both stated that they were driving down Portal Street when they observed § 87(2)(b) standing at the driver's side door of a vehicle. PO Rivera stated that § 87(2)(b) was looking into the front driver's side window with his hands cupped around his eyes and a set of keys in his hands. After approximately five to ten seconds, § 87(2)(b) took one step back from the car and turned his head, noticing PO Smith and PO Rivera seated in their unmarked patrol car. § 87(2)(g) the officers asked § 87(2)(b) whether the car was his. § 87(2)(b) stated that he replied that the car was his, while PO Rivera stated that § 87(2)(b) refused to answer and cursed at them. PO Smith stated that § 87(2)(b) claimed the car was his, but began cursing at them also. During his CCRB interview, PO Rivera stated that at this point, had § 87(2)(b) informed them that he had just locked his car and was going home, their suspicions would have been allayed, but because § 87(2)(b) refused to answer, PO Rivera felt that there was "founded suspicion" of criminality. PO Smith stated he asked § 87(2)(b) why he couldn't open the door. § 87(2)(b) admitted that he refused to answer this question. § 87(2)(b) then produced his cell phone and began to record video of the officers. PO Smith and PO Rivera stated they exited their vehicle with the intention of visually inspecting the car to which § 87(2)(b) had been attempting to enter. It was undisputed that the officers asked § 87(2)(b) for identification and that he refused.

PO Rivera upon exiting his vehicle, noticed that § 87(2)(b) had a key for a Mazda vehicle in his hand, which was remarkable since the taxicab was a Toyota. PO Smith did not observe the keys himself, but was informed by PO Rivera later about his observation of the keys. PO Rivera stated that he decided to frisk § 87(2)(b) waistband for safety reasons after seeing the mismatch of the keys. PO Rivera frisked for weapons as well as burglar tools such as a crowbar. PO Rivera denied that he took the set of keys from § 87(2)(b) or examined them further. PO Rivera stated that he

frisked the waistband and leg area of § 87(2)(b)'s clothing, which took approximately five or six seconds and felt nothing. PO Rivera stated that there were no bulges visible on § 87(2)(b)'s clothing. PO Smith did not closely observe the frisk as he was looking inside the taxicab at this time, but stated he did not observe any bulges on § 87(2)(b)'s clothing either. Neither PO Rivera nor PO Smith observed any signs of break-in on the vehicle.

§ 87(2)(b) refused to provide a copy of the video he recorded to the CCRB, but agreed to allow the undersigned investigator to view the video once during the CCRB interview. The video was approximately 5 minutes and 10 seconds long. The entirety of the stop, occurred approximately in the first two minutes of the video. As the video began, the officers could be seen sitting in their vehicle and then exit their vehicle and approach § 87(2)(b) asking for identification which § 87(2)(b) refused. An officer whom could not be identified approached and stood close to § 87(2)(b) but it could not be discerned whether that officer frisked § 87(2)(b) then moved to record the license plate of the officer's vehicle and asked PO Smith for his badge number, which was provided verbally. § 87(2)(b) then stated that he would report them. The officers returned to their vehicle. In the remaining three minutes of the video, the officers sat in their patrol car as § 87(2)(b) cursed loudly at them. The officers drove away at the end of the video.

In People v. DeBour, 40 N.Y.2d 210 (1976) (**Board Review 7**), the court delineated four levels of police intrusion. The first level of intrusion authorizes a minimal intrusion to approach to request information where there is some objective credible reason. The officer has no right to detain the individual at this level. The second level is activated by a founded suspicion that criminality is afoot and permits a greater intrusion to gain explanatory information to accusatory questions. Under the third level, the police may forcibly stop and detain an individual if there is reasonable suspicion that a person has committed, is committing or is about to commit a felony or misdemeanor, and to frisk for weapons if there is reason to believe the person is armed or is reasonably suspected of a violent crime. The final step permits the officer to arrest when there is probable cause to believe the person has committed a crime.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

it is recommended that **Allegations A, B and C** be **Substantiated**.

Allegation D – Abuse of Authority: Police Officer Henry Rivera searched § 87(2)(b)

§ 87(2)(b) (**Board Review 4**) alleged that after PO Rivera frisked him, PO Rivera searched inside his front and rear pants pockets in which he was carrying his driver's license and loose change. Nothing was removed from the pockets. After this the officers returned to their vehicle without issuing any summonses or arresting § 87(2)(b)

PO Rivera stated that he only frisked § 87(2)(b) and denied that he searched inside any of § 87(2)(b)'s pockets (**Board Review 6**). PO Smith stated that he did not witness closely PO Rivera's frisk of § 87(2)(b) but did not see PO Rivera search inside § 87(2)(b)'s pocket (**Board Review 5**).

§ 87(2)(g)

the moment in which PO Rivera appeared to stand close to § 87(2)(b) was very brief and that the focus of the camera was not upon

§ 87(2)(b) § 87(2)(g). Later in the video, § 87(2)(b) accused an officer of "searching" him. An unidentified voice presumably belonging to an officer responded that he did not "search" him. § 87(2)(b) replied, "Yes you did. You patted me down."

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Squad: 10

Investigator:	_____	<u>Simon Wang</u>	<u>06/13/16</u>
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date